

UPSC GS-II POLITY

Administrative Tribunals and the 2021 Reforms

Integrated Basic + Advanced Course

12 deep-learning modules | Constitutional Design to Live 2026 Litigation Status

Visual architecture maps, timelines, comparisons, UPSC traps and Mains frameworks

Prepared from the verified Polity knowledge base (Laxmikant's Tribunals chapter, L. Chandra Kumar (1997), Madras Bar Association line, Tribunal Reforms Act 2021) and the completed guided session



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

1. Why Specialised Tribunals? Meaning and Rationale

GS-II Polity -
Administrative
Justice

NEWS TRIGGER

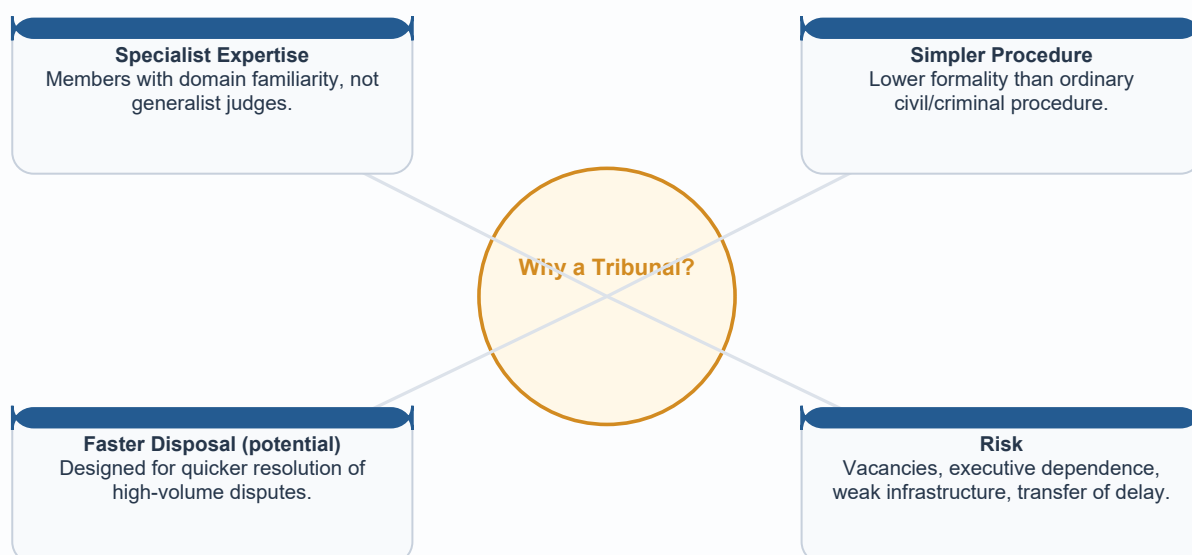
The 2025 GS-II Q2 PYQ directly asked aspirants to compare the need for administrative tribunals against the ordinary court system - making the rationale-versus-risk framing exam-critical.

INTRO & ORIGIN

A tribunal is a specialised adjudicatory forum created for technical or high-volume categories of dispute, offering domain expertise and a simpler, faster procedure than an ordinary court.

The case for tribunals is functional, not a claim that ordinary courts are dispensable - a tribunal succeeds only if speed and specialisation are matched by independence.

TECHNICAL/HIGH-VOLUME DISPUTE: THE CASE FOR A TRIBUNAL



STATIC THEORY

- Tribunals are a response to technical or high-volume categories of dispute (service matters, tax, land reform) that ordinary courts handle slowly or without specialised expertise.
- The tribunal is a specialised adjudicatory forum - not an executive department and not a constitutional court.
- □□ The rationale is conditional: expertise and speed are only realised if independence, tenure and infrastructure are also secured (developed across Modules 6-9).

MEMORY HOOK

Tribunals promise speed + expertise - but only WITH independence + capacity.

MUST-KNOW FACTS

1. Tribunals are specialised forums for technical or high-volume disputes.
2. A tribunal is neither an executive department nor a constitutional court.

UPSC TRAPS

WRONG: The case for tribunals implies ordinary courts are unnecessary.

CORRECT: The case is functional - tribunals supplement, not replace, constitutional courts.

MAINS ANGLE

Open a 2025 GS-II Q2-style answer with this rationale before moving to the constitutional architecture and the independence safeguards.

STUDY LINK

Polity -> Tribunals -> Rationale -> Article 323-A/323-B Architecture (Module 2)

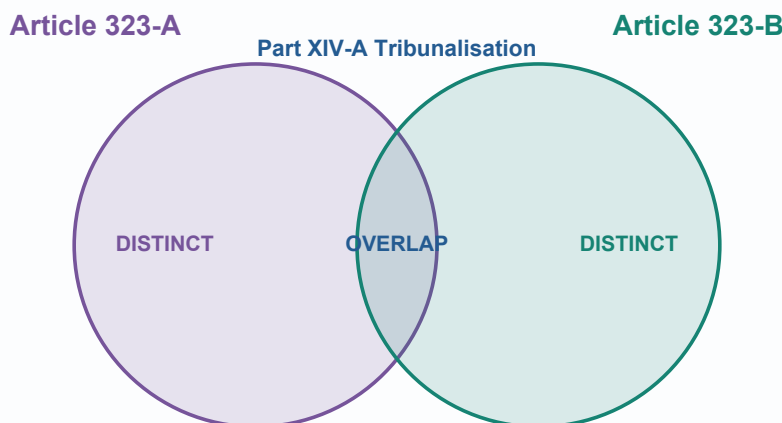
HIGH

2. Constitutional Architecture: Article 323-A vs Article 323-B

GS-II Polity -
Constitutional
Design

INTRO & ORIGIN

Part XIV-A of the Constitution empowers Parliament (Article 323-A) and Parliament or State Legislatures within their competence (Article 323-B) to set up tribunals for specified categories of dispute.

ARTICLE 323-A VS ARTICLE 323-B**Article 323-A**

- Recruitment and service conditions of public servants
- Parliament only may legislate
- One administrative-tribunal field
- Basis of the Administrative Tribunals Act, 1985

Part XIV-A Tribunalisation

- Adjudication moved from ordinary courts to specialised tribunals
- Subject to basic-structure judicial review

Article 323-B

- Tax, foreign exchange, labour, land reform, elections
- Parliament or a State Legislature, within its competence
- Multiple specified subject fields

323-A is narrow and Parliament-only; 323-B is broader and can be state legislation too.

STATIC THEORY

- Article 323-A: Parliament may provide, by law, for adjudication of disputes on recruitment and service conditions of persons appointed to public services and posts.
- Article 323-B: Parliament or a State Legislature (within its competence) may provide for tribunals for enumerated matters such as taxation, foreign exchange, industrial and labour disputes, land reforms and elections.
- Parliament enacted the Administrative Tribunals Act, 1985 under Article 323-A - the statutory basis for the Central Administrative Tribunal (CAT).

MEMORY HOOK

323-A = ONE field (service matters), Parliament ONLY. 323-B = MANY fields, Parliament OR State.

MUST-KNOW FACTS

1. Article 323-A covers recruitment and service conditions of public servants; only Parliament can legislate.
2. Article 323-B covers multiple specified fields (tax, labour, land reform, elections); Parliament or a competent State Legislature can legislate.

UPSC TRAPS

WRONG: Articles 323-A and 323-B are identical in scope and law-making competence.

CORRECT: They differ in subject, law-maker and scope - 323-A is Parliament-only and single-field; 323-B allows State legislation within competence and covers multiple fields.

WRONG: Only Parliament may legislate under both Articles.

CORRECT: States may legislate within their competence under Article 323-B; Article 323-A remains Parliament-only.

MAINS ANGLE

State the Article 323-A/323-B distinction explicitly in any tribunal answer - examiners test the law-maker and subject-scope difference directly.

STUDY LINK

Polity -> Tribunals -> Constitutional Architecture -> ATA 1985 & CAT (Module 3)

HIGH**3. The Administrative Tribunals Act, 1985 and the CAT**GS-II Polity -
Statutory Design**KEY DATA**

Feature	Detail
Enacted under	Article 323-A
Body created	Central Administrative Tribunal (CAT)
Also enables	State Administrative Tribunals / Joint Administrative Tribunals
Core jurisdiction	Recruitment and service matters of covered Union public servants
Character	Statutory adjudicatory forum - not an executive department, not a constitutional court
Scope limit	Jurisdiction is statutory and carries specific exclusions

STATIC THEORY

- CAT deals principally with recruitment and service matters of covered Union public servants; its jurisdiction is defined and limited by statute.
- Tribunals under the 1985 Act are supplemental to, not substitutes for, constitutional courts.
- Judicial review under Articles 32 and 226/227 remains part of the basic structure, unaffected in principle by the creation of CAT (developed fully in Modules 4-5).

MEMORY HOOK

CAT = statutory forum for service matters, NOT a constitutional court.

MUST-KNOW FACTS

1. The Administrative Tribunals Act, 1985 created the Central Administrative Tribunal (CAT).
2. CAT's jurisdiction is statutory, with defined exclusions, principally over service matters.

UPSC TRAPS

WRONG: CAT can be treated as functionally equivalent to a High Court.

CORRECT: CAT is a statutory tribunal with defined, exclusion-bound jurisdiction - not a constitutional court.

MAINS ANGLE

Use the 'supplemental, not substitute' framing to answer questions on whether tribunals threaten the judiciary's constitutional role.

STUDY LINK

Polity -> Tribunals -> ATA 1985 & CAT -> Judicial Review Battle (Module 4)

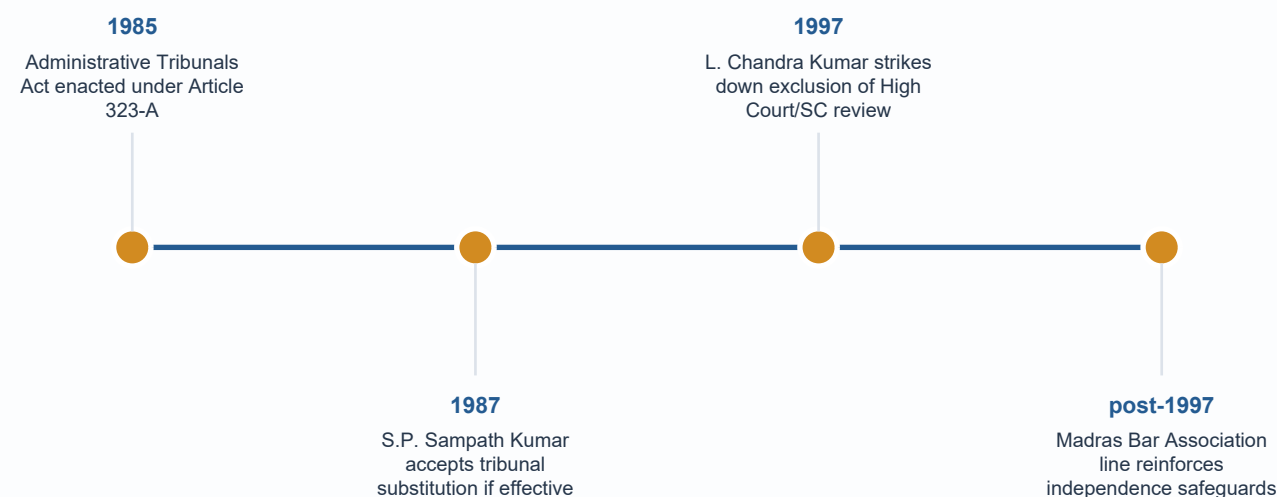
HIGH

4. The Judicial-Review Battle: Sampath Kumar to L. Chandra Kumar

GS-II Polity -
Judicial Review /
Case Law

NEWS TRIGGER

The tension between statutory tribunalisation and constitutional judicial review was settled only after a twelve-year litigation arc from 1985 to 1997.

FROM THE 1985 ACT TO THE L. CHANDRA KUMAR SETTLEMENT**STATIC THEORY**

- S.P. Sampath Kumar (1987) initially accepted tribunal substitution of High Court jurisdiction, provided the alternative institutional mechanism was equally effective.
- L. Chandra Kumar (1997) reversed course on exclusion: judicial review under Articles 226/227 and 32 could not be excluded, because judicial review is part of the basic structure.
- This is the single most tested case-law sequence in the tribunals chapter - the two case names and their opposite holdings on 'exclusion' are a classic Prelims trap.

MEMORY HOOK

1987 Sampath Kumar accepted substitution -> 1997 L. Chandra Kumar restored review.

MUST-KNOW FACTS

1. S.P. Sampath Kumar (1987) accepted tribunal substitution if the alternative mechanism was effective.
2. L. Chandra Kumar (1997) held that excluding High Court/Supreme Court judicial review was unconstitutional.

UPSC TRAPS

WRONG: S.P. Sampath Kumar and L. Chandra Kumar reached the same conclusion on excluding judicial review.

CORRECT: Sampath Kumar (1987) accepted substitution conditionally; L. Chandra Kumar (1997) held exclusion of Article 226/227 and 32 review unconstitutional.

MAINS ANGLE

Cite both cases together to show doctrinal evolution, not a single static holding - examiners reward the sequence, not just the final rule.

STUDY LINK

Polity -> Tribunals -> Case Law Timeline -> L. Chandra Kumar Doctrine In-Depth (Module 5)

HIGH**5. The L. Chandra Kumar Doctrine (1997) In-Depth**

GS-II Polity -
Basic Structure &
Judicial Review

HOW L. CHANDRA KUMAR RESTORED JUDICIAL REVIEW**1. Tribunals may decide constitutional questions**

Tribunals can adjudicate constitutional questions in the first instance.

**2. Exclusion clause held unconstitutional**

Excluding Article 226/227 and 32 review from tribunal decisions is unconstitutional.

**3. Judicial review = basic structure**

Judicial review by constitutional courts is part of the basic structure - it cannot be removed by ordinary or even constituent legislative action.

**4. Division Bench supervision**

Tribunal decisions are subject to scrutiny by a Division Bench of the territorial High Court.

**5. Trade-off: an extra tier**

Constitutional supervision is protected, but speed now depends on sound first-instance adjudication, not on stripping jurisdiction.

STATIC THEORY

- The core L. Chandra Kumar holding: tribunals are competent to examine constitutional validity of statutory provisions in the first instance, but their decisions remain subject to a Division Bench of the territorial High Court.
- This is the constitutional safeguard the Basic tier's ASCII diagram calls the 'L. Chandra Kumar safeguard' - tribunal decisions remain reviewable, they are never final and unreviewable.
- ☐☐ The safeguard protects supervision but adds a procedural tier - overall speed gains from tribunalisation depend on tribunals getting cases right the first time.

MEMORY HOOK

L. Chandra Kumar: review restored, NOT abolished - via the High Court Division Bench.

MUST-KNOW FACTS

1. Tribunal decisions remain reviewable by a Division Bench of the territorial High Court under Articles 226/227.
2. Judicial review is part of the basic structure and cannot be excluded even by a constitutional amendment provision like Article 323-A/323-B.

UPSC TRAPS

WRONG: Tribunal decisions are immune from High Court review.

CORRECT: They are reviewable under Articles 226/227 after L. Chandra Kumar (1997).

WRONG: Tribunalisation permits Parliament to remove the basic structure via Article 323-A/323-B.

CORRECT: Constituent and legislative power remain subject to basic-structure judicial review; the exclusion clause itself was struck down for this reason.

MAINS ANGLE

The L. Chandra Kumar doctrine is the anchor for any argument that tribunalisation has NOT weakened constitutional judicial review in India.

STUDY LINK

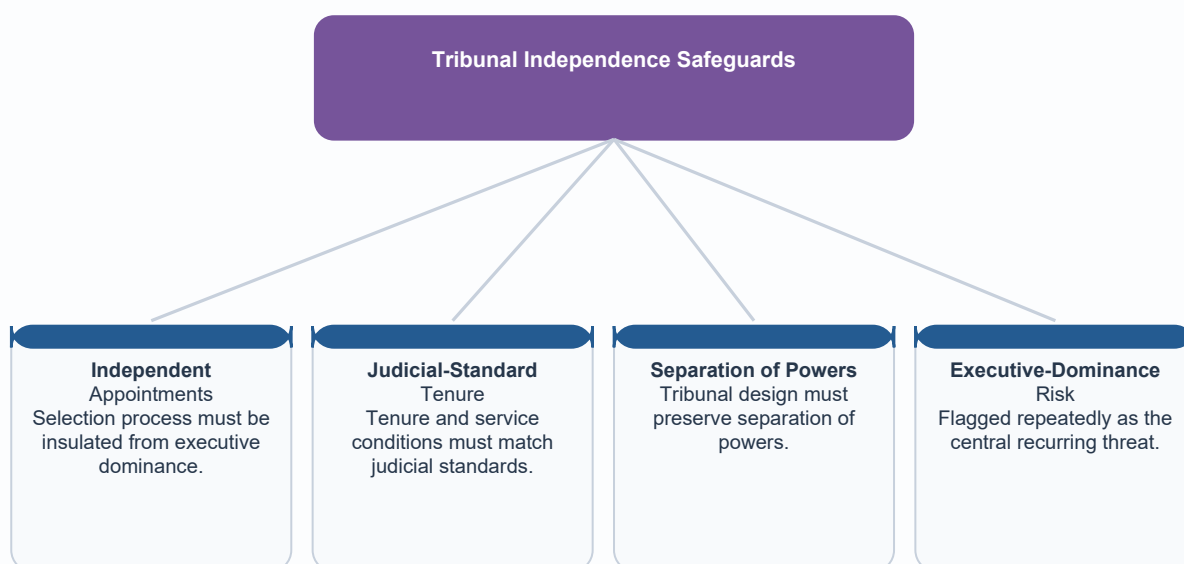
Polity -> Tribunals -> L. Chandra Kumar -> Madras Bar Association & Independence (Module 6)

HIGH

6. The Madras Bar Association Line and Independence Safeguards

GS-II Polity -
Judicial
Independence

INDEPENDENCE SAFEGUARDS DEMANDED BY THE MADRAS BAR ASSOCIATION LINE

**STATIC THEORY**

- The Supreme Court's Madras Bar Association line of cases insists that tribunal appointments, tenure and service conditions must preserve judicial independence and the separation of powers.
- This line of jurisprudence is the doctrinal bridge between L. Chandra Kumar (1997) and the later scrutiny of the Tribunal Reforms Act, 2021 (Modules 7-8).
- ☐ Executive influence over appointments, short tenure, vacancies and weak infrastructure remain the central independence/capacity concerns repeatedly flagged by the Court.

MEMORY HOOK

Madras Bar Association: appointments + tenure + separation of powers, all judicial-grade.

MUST-KNOW FACTS

1. The Madras Bar Association line requires tribunal appointments and service conditions to preserve judicial independence.
2. Executive influence over appointments and short tenure are the recurring independence risks.

UPSC TRAPS

WRONG: Independence concerns about tribunals are only about the 2021 reforms.

CORRECT: They are a continuing jurisprudential theme running from Sampath Kumar (1987) through L. Chandra Kumar (1997) to the Madras Bar Association line and the 2021 Act.

MAINS ANGLE

Anchor any independence-focused answer in the Madras Bar Association line before applying it to the specific 2021 tenure controversy.

STUDY LINK

Polity -> Tribunals -> Independence
Safeguards -> Tribunal Reforms Act 2021 (Module 7)

HIGH**7. Tribunal Reforms Act, 2021: What Changed**GS-II Polity -
Statutory Reform**INTRO & ORIGIN**

The Tribunal Reforms Act, 2021 rationalised the tribunal landscape by abolishing specified appellate bodies and transferring their functions to existing judicial or administrative forums, and prescribed a common framework for qualifications, appointment, tenure and service conditions for members of covered tribunals.

KEY DATA

Claimed Gain	Counter-Risk	Surgical Reform
Fewer overlapping bodies	Specialised work shifted to already-burdened courts	Dedicated rosters and transferred staff/records
Uniform appointment rules	Executive dominance or delayed selection	Independent search-selection process and binding timelines
Administrative economy	Vacancies and weak regional access	Bench planning, budgets and public vacancy dashboards
Faster finality	An additional High Court-review stage remains	Better first-instance quality; do not remove judicial review

STATIC THEORY

- The 2021 Act abolished specified appellate bodies and transferred their functions to existing courts or administrative forums - a rationalisation, not a wholesale abolition of tribunals.
- It established one common service-condition framework (qualifications, appointment, tenure) for covered tribunal chairpersons and members, replacing scattered tribunal-specific rules.
- ☐☐ Rationalisation can reduce institutional duplication, but transferring specialised work to already-burdened courts may weaken the promised gains in speed and expertise.

MEMORY HOOK

2021 Act = abolish appellate bodies + transfer work + one common service-conditions framework.

MUST-KNOW FACTS

1. The Tribunal Reforms Act, 2021 abolished specified appellate bodies and transferred their functions to existing courts/forums.
2. It created a common qualifications/appointment/tenure/service-conditions framework for covered tribunals.

UPSC TRAPS

WRONG: Rationalisation under the 2021 Act automatically reduces pendency.

CORRECT: Forum transfer can merely shift pendency unless judges, benches and infrastructure follow the transferred workload.

MAINS ANGLE

Use the four-row gain/risk/reform table as the evaluative spine of a 2021-reforms answer - it converts a descriptive question into a balanced assessment.

STUDY LINK

Polity -> Tribunals -> 2021 Reforms: What Changed -> 2021 Timeline & Live Litigation (Module 8)

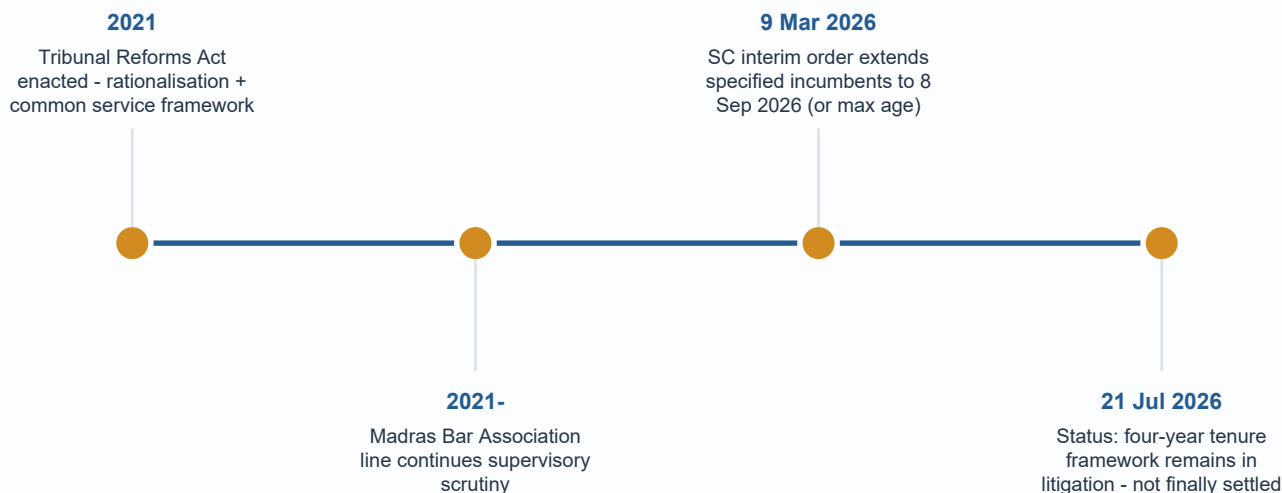
HIGH

8. 2021 Reforms Timeline and Live Litigation Status (Verified)

GS-II Polity -
Current Affairs /
Constitutional
Litigation

NEWS TRIGGER

Verified source status (21 Jul 2026): the 2021 Act's four-year tenure framework remains in constitutional litigation against the Supreme Court's tribunal-independence directions. A 9 Mar 2026 Supreme Court interim order extended specified serving incumbents only until 8 Sep 2026 (or the applicable maximum age); it did not finally settle the Act's validity.

2021 ACT TO THE 2026 INTERIM ORDER**STATIC THEORY**

- The Act's four-year tenure provisions are contested against the Supreme Court's earlier five-year-tenure directions under the Madras Bar Association line.
- The 9 March 2026 order is an interim arrangement, not a final merits judgment - it extends specified serving incumbents only, until 8 September 2026 or the applicable maximum age.
- □ This is a verified-source current-affairs anchor: cite the specific dates (9 Mar 2026 order, 8 Sep 2026 extension limit, 21 Jul 2026 status check) rather than a generic 'reforms are being challenged' statement.

MEMORY HOOK

9 Mar 2026 order -> extension till 8 Sep 2026 -> interim, NOT final (as of 21 Jul 2026).

MUST-KNOW FACTS

1. The 2021 Act prescribes a four-year tenure, contested against the Court's prior five-year-tenure directions.
2. The Supreme Court's 9 March 2026 interim order extended specified incumbents until 8 September 2026 or the applicable maximum age.
3. As of 21 July 2026, the Act's validity is not finally settled - litigation continues under Supreme Court supervision.

UPSC TRAPS

WRONG: The four-year tenure controversy is finally settled by the Supreme Court.

CORRECT: The Court continues supervisory proceedings; the March 2026 order is an interim extension, not a final merits ruling.

MAINS ANGLE

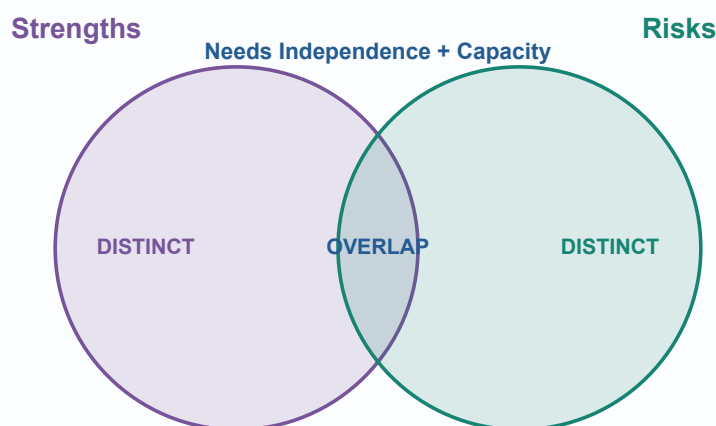
Always flag this as an ongoing, unsettled matter - stating it as 'resolved' is a factual overreach the examiner can penalise.

STUDY LINK

Polity -> Tribunals -> Live Litigation Status -> Strengths vs Risks (Module 9)

HIGH**9. Independence vs Efficiency: Strengths and Risks**

GS-II Polity -
Evaluative
Synthesis

TRIBUNAL STRENGTHS VS STRUCTURAL RISKS**Strengths**

- Domain expertise
- Simpler, faster procedure (potential)
- Greater accessibility for specific disputes

Needs Independence + Capacity

- Only functional value if independence is secured
- Only functional value if adequate capacity is secured

Risks

- Vacancies and delayed appointments
- Executive dependence in selection/tenure
- Court burden from High Court review stage
- Weak regional/bench infrastructure

The same tribunal design can deliver either gain, depending entirely on whether independence and capacity are actually secured.

STATIC THEORY

- This module consolidates Modules 1, 6 and 7-8: expertise/speed are the promise; vacancies, executive dependence and court burden are the recurring counter-risk.
- □□ The evaluative synthesis: tribunals are neither an unqualified success nor an unqualified failure - outcomes depend on execution, not on the tribunal model itself.

MEMORY HOOK

Same design, two outcomes - independence + capacity decide which.

MUST-KNOW FACTS

1. Tribunal strengths: domain expertise, simpler procedure, potential speed and accessibility.
2. Tribunal risks: vacancies, executive dependence, court burden, weak infrastructure.

UPSC TRAPS

WRONG: Tribunals are inherently faster than ordinary courts in every case.

CORRECT: Speed is only potential - it depends on staffing, independence and infrastructure actually being in place.

MAINS ANGLE

Use this strengths/risks synthesis as the evaluative core of any 15-mark tribunals answer, before turning to the specific 2021 reforms.

STUDY LINK

Polity -> Tribunals -> Strengths vs Risks -> Verified PYQ Application (Module 10)

HIGH**10. Verified PYQ Application: 2025 GS-II Q2**GS-II Polity -
PYQ Application**NEWS TRIGGER**

Verified source: 2025 GS-II Q2 (10 marks, 150 words) - 'Comment on the need of administrative tribunals as compared to the court system. Assess the impact of the recent tribunal reforms through rationalization of tribunals made in 2021.'

ANSWER ROUTE FOR 2025 GS-II Q2**1. State the need**

Expertise, speed, flexible procedure versus ordinary courts.

**2. State the safeguard**

L. Chandra Kumar (1997) preserves judicial review and tribunal independence via the Madras Bar Association line.

**3. State the 2021 gain**

Consolidation of overlapping appellate bodies under one common service-conditions framework.

**4. State the risk**

Court burden, vacancies and executive control over appointments/tenure.

**5. Conclude**

Independent appointments and adequate capacity, not just consolidation, decide whether the 2021 reforms actually help.

STATIC THEORY

- Thesis for this PYQ: tribunals remain justified by specialisation, accessibility and potential speed, but the 2021 rationalisation is beneficial only where consolidation is accompanied by capacity and independence; otherwise it transfers rather than resolves delay.
- This is the exact verified structure to reuse for any future variant of this question.

MEMORY HOOK

Need -> Safeguard -> 2021 Gain -> Risk -> Conclusion (capacity + independence decide outcome).

MUST-KNOW FACTS

1. 2025 GS-II Q2 is a verified 10-mark, 150-word PYQ directly on this chapter.
2. The expected answer route pairs the 2021 rationalisation gain with the court-burden/executive-control risk before concluding.

MAINS ANGLE

Reuse this exact five-step route for any question combining 'need for tribunals' with 'impact of 2021 reforms' - it is the verified, examiner-tested structure.

STUDY LINK

Polity -> Tribunals -> Verified PYQ -> Facts, Traps & Study Links (Module 11)

HIGH**11. Consolidated Facts, Traps and Study Links**

GS-II Polity -
Consolidation &
Cross-Links

STATIC THEORY

- Recap: Article 323-A is Parliament-only and single-field (service matters); Article 323-B is broader and allows State legislation within competence.
- Recap: Sampath Kumar (1987) accepted conditional substitution; L. Chandra Kumar (1997) restored judicial review as basic structure via High Court Division Bench supervision.
- Recap: the 2021 Act rationalised appellate bodies and created a common service-conditions framework, but its four-year tenure clause remains contested and unsettled as of 21 Jul 2026.

MEMORY HOOK

323-A/B -> Sampath Kumar -> L. Chandra Kumar -> Madras Bar Association -> 2021 Act -> 2026 litigation.

MUST-KNOW FACTS

1. Article 323-A is Parliament-only (service matters); Article 323-B allows State legislation within competence (multiple fields).
2. L. Chandra Kumar (1997) preserved judicial review as part of the basic structure.
3. The 2021 Act's four-year tenure clause remains under Supreme Court supervision, not finally settled.

UPSC TRAPS

WRONG: Tribunalisation permits Parliament to remove the basic structure entirely.

CORRECT: Constituent and legislative power remain subject to basic-structure judicial review, as L. Chandra Kumar itself demonstrates by striking down the exclusion clause.

WHERE TRIBUNALS CONNECT ELSEWHERE IN POLITY

Core Concept	Linked Concept	Why It Matters
Judicial review (L. Chandra Kumar)	Supreme Court - basic structure	Judicial review is part of the basic structure, tested across both chapters.
Articles 226/227 review of tribunals	High Court and Subordinate Courts	The Division Bench safeguard and general court-burden concerns connect directly.
Independence/accountability design	Regulatory Governance & Independent Regulators	Tribunals and independent regulators share the same appointment/tenure independence debate.

MAINS ANGLE

Use the link_map to widen a tribunals answer into the broader independent-institutions debate (Supreme Court, High Courts, regulators) for a higher-value 20-mark response.

STUDY LINK

Polity -> Tribunals -> Consolidation -> UPSC Answer-Writing Framework (Module 12)

HIGH

12. UPSC Mains Answer-Writing Framework: Administrative Tribunals

GS-II Polity -
Answer
Framework

FIVE-STEP ANSWER STRUCTURE



STATIC THEORY

- This five-step spine directly answers both the constitutional-design question (Articles 323-A/323-B) and the reform-evaluation question (2021 Act) in one coherent structure.
- Always distinguish the statutory four-year tenure text, the Court's prior judicial-independence directions, and the March 2026 interim extension as three separate, currently-unreconciled elements - conflating them is the most common Mains-level error in this chapter.

MEMORY HOOK

Define+Cite -> Need -> Safeguard -> Assess Reform -> Balanced Recommendation.

MUST-KNOW FACTS

1. Always cite both Articles 323-A and 323-B by number, not just 'tribunal provisions'.
2. Always cite L. Chandra Kumar (1997) by name when discussing judicial review of tribunal decisions.
3. Always flag the 2021 tenure dispute as ongoing/interim, not settled, as of the verified 21 Jul 2026 status.

MAINS ANGLE

This is the master framework for the entire chapter - use it for both the 2025 GS-II Q2 pattern and any future variant on tribunal independence or reform.

STUDY LINK

Polity -> Tribunals -> Complete -> Supreme Court / High Court (companion chapters)